

NON-DISCLOSURE AGREEMENT (TEST DOCUMENT 2)

This Non-Disclosure Agreement ("Agreement") is entered into between the Disclosing Party and the Receiving Party.

1. Definition of Confidential Information

Confidential Information includes all non-public business, technical, financial, and proprietary information disclosed by the Disclosing Party.

2. Exclusions

Confidential Information does not include information that is publicly available, independently developed, or lawfully obtained from a third party.

3. Return or Destruction of Materials

Upon request, the Receiving Party shall promptly return or destroy all Confidential Information and related materials.

4. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the applicable jurisdiction.

5. Severability

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall remain in full force and effect.

6. Entire Agreement

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements relating to the subject matter.

7. Unlimited Disclosure Rights

The Receiving Party may disclose Confidential Information to any third party without obtaining prior written consent.

8. No Liability

The Receiving Party shall bear no liability for unauthorized disclosure of Confidential Information.

9. Unilateral Modification

The Receiving Party may modify this Agreement at any time without notice to the Disclosing Party.

10. One-Sided Termination

The Receiving Party may terminate this Agreement immediately, while the Disclosing Party shall have no such right.

11. Waiver of Claims

The Disclosing Party waives all claims arising from any misuse or disclosure of Confidential Information.

IN WITNESS WHEREOF, the parties have executed this Agreement.